

13. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO TO MEHRZAD AZARI**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

14. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: REOPEN DISCOVERY AND/OR IN THE ALTERNATIVE, ALLOW PLAINTIFF TO SERVE TARDY EXPERT WITNESS DISCLOSURE**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

15. 9:00 AM CASE NUMBER: MSC21-01086

CASE NAME: HERNANDEZ VS. AMERICAN AUTOMOBILE

***MOTION/PETITION TO COMPEL ARBITRATION RE: AMERICAN AUTOMOBILE ASSOCIATION OF NORTHERN CALIFORNIA, NEVADA & UTAH**

FILED BY: HERNANDEZ, ELIZABETH

TENTATIVE RULING:

The unopposed petition to confirm arbitration award filed December 17, 2025 is GRANTED. Moving party to submit form of order and judgment.

16. 9:00 AM CASE NUMBER: N25-2269

CASE NAME: PETITION OF: ELAINE LAVAN

***HEARING ON MOTION IN RE: FOR ORDER REQUIRING RESPONDANT TO PREPARE AND PROVIDE ADMINISTRATIVE RECORD W/O COST TO PETITIONER**

FILED BY: LAVAN, ELAINE

TENTATIVE RULING:

Petitioner Elaine La Van's motion to require Respondent California State Approving Agency for Veterans Education to prepare the record is **DENIED**.

Petitioner requests that respondent California State Approving Agency for Veterans Education (CSAAVE) be ordered to prepare the administrative record in this case and provide a certified copy of the record to Petitioner at no cost, pursuant to Code of Civil Procedure section 1094.5.

The parties spend much of their briefing discussing whether this case is properly an administrative or traditional writ and the underlying merits. The Court does not need to reach these issues to rule on the motion presently before it.

Code of Civil Procedure section 1094.5 provides in relevant part: “Where the petitioner has proceeded pursuant to Article 6 (commencing with Section 68630) of Chapter 2 of Title 8 of the Government Code and the Rules of Court implementing that section [fee waiver] and where the transcript is necessary to a proper review of the administrative proceedings, the cost of preparing the transcript shall be borne by the respondent.”

Petitioner was granted a fee waiver on January 13, 2026. (January 13, 2026 minute order.) However, Petitioner has not shown that there is a hearing transcript available in this case.

Code of Civil Procedure section 1094.5 requires “the cost of preparing the *transcript* [to] be borne by the respondent” when the petitioner has a fee waiver. A transcript has a specific meaning and is just one part of an administrative record. (See, e.g. Government Code section 11523 [in Administrative Procedure Act cases, “The complete record includes the pleadings, all notices and orders issued by the agency, any proposed decision by an administrative law judge, the final decision, a transcript of all proceedings, the exhibits admitted or rejected, the written evidence and any other papers in the case.”].)

In *Austin v. Valverde* (2012) 211 Cal.App.4th 546, the court held that the language in 1094.5 requires the respondent to prepare and provide a copy of the administrative transcript for free to an indigent petitioner. (*Id.* at 547.) *Austin* did not address whether a respondent must prepare documents outside of the hearing transcript when requested to do so by a petitioner with a fee waiver.

Petitioner also points to California Rules of court, rule 3.2225(c)(2), which she argues says that “For good cause, the court may order the respondent agency to pay for all or part of the cost of preparing the administrative record.” Petitioner did not correctly quote rule 3.2225. Rule 3.2225(b)(2) states that “On request and payment of the reasonable cost of preparation, or on order of the court for good cause shown, the lead agency shall provide a party with the record in paper format.” This rule of Court does not apply here. It is specific to California Environmental Quality Act cases and addresses providing a paper copy of the record.

Petitioner’s citation to *Rivas v. City of Kerman* (1992) 10 Cal.App.4th 1110 is misplaced. That case addressed whether Government Code section 825 required respondent to pay a stipulated judgment on behalf of a police officer that shot the deceased. It does not address the cost of record preparation.

In this case, the Court finds that Respondent CSAAVE would be required to prepare and pay for the hearing transcript, but there is no hearing transcript. Petitioner has not shown that a hearing transcript exists and Respondent argues that there was no hearing. Thus, the Court cannot order CSAAVE to prepare a transcript that does not exist.

Petitioner's motion sought to require Respondent to prepare the record, but at respondent's cost. Since the Court cannot require Respondent to pay for preparation of the record, it is unclear if Petitioner still wants to have Respondent prepare the record, which would be at her expense.

The Court sets a case management conference for June 25, 2026.

The parties shall meet and confer regarding preparation of the record in this case. Respondent shall provide an estimate of the costs associated with record preparation, if they have not already done so. The parties shall also discuss a deadline for preparation of the record. The parties are ordered to meet and confer by video conference or telephone no later than June 1, 2026.

Petitioner filed a supplemental declaration on April 9, 2026, addressing the merits of Petitioner's claims and appearing to challenge the Court's ruling on Petitioner's motion for a preliminary injunction. Respondent objected to that declaration. The Court considered Petitioner's supplemental declaration to see if it would address the issues regarding record preparation. To the extent Petitioner is requesting reconsideration of the Court's ruling on the motion for a preliminary injunction, a supplemental declaration is not the proper procedure for seeking reconsideration.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C24-02099
CASE NAME: DIANA BONNETT VS. NORCAL PRIME FOODS DISTRIBUTOR, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL POST JUDGMENT INTERROGATORIES, SET ONE**
FILED BY: BONNETT, DIANA
TENTATIVE RULING:

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

18. 9:01 AM CASE NUMBER: C24-02099
CASE NAME: DIANA BONNETT VS. NORCAL PRIME FOODS DISTRIBUTOR, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF**
DOCUMENTS, SET ONE
FILED BY: BONNETT, DIANA
TENTATIVE RULING:

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

19. 9:01 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO FORM INTERROGATORIES, SET**